

STANDARD TERMS AND CONDITIONS OF PROCUREMENT

Document Reference: S7-SCM-TC-2026-v1.0

1. Definitions and Interpretations

- 1.1 "Company"** refers to Seaway7 or any of its affiliated entities issuing the Purchase Order or Invitation to Tender (ITT).
- 1.2 "Supplier"** refers to the person, firm, or company to whom the Purchase Order is addressed.
- 1.3 "EPCI"** means Engineering, Procurement, Construction, and Installation.
- 1.4 "Goods" and "Services"** refer to all materials, equipment, spare parts, and labor detailed in the agreed Purchase Order.

2. Scope of Application

- 2.1** These Terms and Conditions shall apply to all procurement activities, Requests for Proposals (RFPs), ITTs, and Purchase Orders issued by the Company for offshore wind, heavy lifting, and subsea cable installation projects.
- 2.2** Any deviation from these terms must be explicitly agreed upon in writing by the Company's Supply Chain Management (SCM) Director.

3. Health, Safety, Environment, and Quality (HSEQ)

- 3.1** The Supplier warrants that all Goods and Services will strictly adhere to the highest offshore maritime standards, including but not limited to **ISO 9001** (Quality Management) and **ISO 14001** (Environmental Management).
- 3.2** For any offshore services provided, the Supplier must comply with the Company's HSEQ Golden Rules, DNV offshore standards, and all applicable international maritime conventions (e.g., SOLAS, MARPOL).
- 3.3** The Company reserves the right to audit the Supplier's manufacturing facilities and quality assurance documentation with a 48-hour prior written notice.

4. Delivery, Title, and Risk

4.1 Unless otherwise specified in the Purchase Order, delivery of Goods shall be **DDP (Delivered Duty Paid)** (Incoterms 2020) to the Company's designated mobilization port or shipyard.

4.2 Title to the Goods, and all associated risks, shall pass to the Company only upon physical delivery, inspection, and formal written acceptance by a Company representative.

4.3 The Supplier must provide a comprehensive Technical Document Package (TDP), including material certificates, user manuals, and lifting plans, no later than 14 days prior to delivery.

5. Maritime Liabilities and Indemnities (Knock-for-Knock)

5.1 Given the offshore nature of the operations, both Company and Supplier agree to a mutual "Knock-for-Knock" liability regime.

5.2 The Supplier shall be responsible for and shall save, indemnify, defend, and hold harmless the Company Group from any claims concerning the injury to or death of any personnel of the Supplier Group, and the loss of or damage to any property of the Supplier Group, regardless of fault or negligence.

5.3 Conversely, the Company shall indemnify the Supplier against injury, death, or property damage relating to the Company Group's personnel and property.

6. Warranties and Defect Liability

6.1 The Supplier warrants that the Goods and Services shall be free from defects in design, materials, and workmanship, and shall be fit for the intended offshore/subsea application.

6.2 The Warranty Period shall be **twenty-four (24) months** from the date of final installation and commissioning at the offshore wind farm, or **thirty-six (36) months** from the date of delivery, whichever expires later.

7. Pricing and Payment Terms

7.1 All prices are fixed, firm, and not subject to escalation unless expressly tied to an agreed commodities index in the Purchase Order.

7.2 Payment shall be made **sixty (60) days** from the end of the month in which a correct and fully documented invoice is received by the Company's accounts payable department.

8. Confidentiality

8.1 The Supplier shall treat all technical specifications, EPCI project details, and commercial terms provided by the Company as strictly confidential and shall not disclose them to any third party without written consent.

9. Governing Law and Dispute Resolution

9.1 This Agreement shall be governed by and construed in accordance with the **Laws of England and Wales**.

9.2 Any dispute arising out of or in connection with these terms shall be referred to and finally resolved by arbitration under the LCIA Rules, which Rules are deemed to be incorporated by reference into this clause. The seat of arbitration shall be London, England.

CONFIDENTIAL & PROPRIETARY - INTERNAL/SUPPLIER USE ONLY
Mock Data Generated for Prototype Demonstration